

Form No.HCJD/C-121

ORDER SHEET**IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN****JUDICIAL DEPARTMENT.****Intra Court Appeal No.56-2021****Muhammad Muazam, etc.**

Versus

Govt. of the Punjab, etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
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03.06.2021. Raja Naveed Azam, Advocate for the Appellant.
Mian Shahid Riaz, Assistant Advocate General.

Through this Intra Court Appeal under Section 3 of the Law Reforms Ordinance, 1972 the Appellants have challenged the Judgment dated 05.10.2020 passed by the learned Single Judge in Writ Petition No.7710 of 2019 whereby the Writ Petition filed by the Appellants was dismissed with the following observation:-

“The decision of the Inspector General of Police as well as the afore-referred report/opinion by District Police Office, relating to unsatisfactory performance, who was the appointing authority relating to extension of contracts and consequent non-extension of contract, cannot be interfered by this Court because the said authorities are competent to extend or refuse to extend contracts

and the said opinion and decision have not been shown to be based on any illegality, against some provision of law, beyond the jurisdiction vested in the said respondents or perverse. Besides, it has been held in judgments reported as “Federation of Pakistan through Secretary Law, Justice and Parliamentary Affairs v. Muhammad Azam Chattha (2013 SCMR 120) and Director General Emergency Rescue Service 1122 Khyber Pakhtunkhwa, Peshawar v. Nizakat Ullah (20119 SCMR 640)” that contract employees cannot seek extension of contract by filing constitutional petitions”.

2. Learned counsel has argued that the Appellants while serving as Police Station Assistant in the Police Department were employed on contracts for computerization of the Police Stations record etc. and their contracts were terminated without any just and lawful cause. Learned counsel submits that the learned Single Judge failed to advert that Appellants services were always satisfactory and that is why the said contracts were extended for four months. Throughout, the currency of the contracts, they were not issued any show cause notice.

3. Learned counsel for the Appellants further argued that the termination of contracts of the Appellants was not termination simplicitor rather they were removed with the stigma of the poor performance and it was mandatory to hold full fledged inquiry and disciplinary proceedings

otherwise, any action taken by the Respondent against the Appellants suffers from mala fide.

4. It has been argued before us that the Appointing Authority *malafidely* deprived the Appellants from their right to extension of their contracts because valuable rights were refused in their favour after rendering services to the Police Department and even if the services were to be terminated then the termination could have only taken place after one month notice as per terms of the contracts as well as mandatory requirement as per Contract Policy, 2004 but in the instant case neither one month notice was given to the Appellants nor salary in lieu thereof has been paid to the Appellants. The department has discriminated the Appellants as various other individuals equally placed with the Appellants were granted extension of contracts whereas the Appellants' contracts were terminated. The Appellants deserve equal protection of law and like all individual whose contracts have been extended, the Appellants deserved the same treatment.

5. In these circumstances, dismissing the writ petition filed by the Appellants was illegal and unlawful, therefore, the impugned Judgment is against the law. The Appellants have prayed for setting aside the impugned Judgment passed by the learned Single Judge and consequently, the Writ Petition filed by them was liable to be allowed.

6. Learned Assistant Advocate General appeared on Court's call and submitted that the Writ Petition was rightly dismissed as the Appellants have no legal entitlement to seek extension of their contracts which have already been terminated and learned Single Judge rightly held that the contracts employee cannot seek extension of contracts by filing Constitutional Petition.

7. We have heard the arguments of learned counsel for the Appellants as well as learned Assistant Advocate General. The moot point in the instant case is whether the nature of contracts involved in the facts and circumstances of the case could equip the Appellants to assert their rights through invoking constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 and that whether a discrimination has been meted out to the Appellants and lastly does non-extension of the contract of the Appellants tantamount to stigma as contended by the learned counsel for the Appellants.

8. We have minutely perused the record and noticed that pursuant to Contract Appointment Policy 2004, the Respondent No.2, AIG (Admin) *inter-alia*, advertised the post of Police Station Assistant. Amongst others the Appellants qualified for the subject matter post and through letter dated

03.03.2017 were issued provisional Job Offer Letters for the said post.

9. It is noteworthy from the said Job Offer Letter that three clauses are important to evaluate the rights of the Appellants:-

3- Tenure:

Your contracts will be for 1½ year from the date of appointment (Extendable depending upon performance)

10- Seniority/regular appointment:

You will not confer any right of regular appointment to the post nor towards seniority.

17- Termination of Contracts:-

a). Contract appointment will be liable to termination on one-month's notice or one-month pay in lieu thereof, on either side, without assigning any reason.

b) However, you will not be able to exercise their right before completion of initial contract period (one and half year).

10. It is an admitted position that the Appellants duly agreed and accepted the terms and conditions contained in the Job Offer Letter and consequently, the training program of the Appellants was initiated.

11. In terms of Clause 3 upon completion of the initial contracts period of 1½ year, the Appellants contracts of service were further extended to four

months through Order dated 20.06.2018. Subsequently, the performance of the Appellants was not found satisfactory and consequently their contracts were accordingly, not extended further and the Appellants through their Writ Petition culminating into instant proceedings claimed extension of contracts as of right.

12. We are afraid that the subject matter extension of contracts cannot be granted to the Appellants as of law as well as of right, *firstly*, for the reasons that on the day when the Appellants invoked the Constitutional jurisdiction of this Court their status was of an employee whose contracts had expired and this Court under its constitutional jurisdiction through a mandatory injunction cannot force an unwilling employer to extend the contracts of service which has already expired. *Secondly*, for granting a relief canvassed by the Appellants in the Writ Petition and now in the instant Intra Court Appeal this Court cannot undertake a factual inquiry i.e. whether the performance of the Appellants is satisfactory or not. *Thirdly*, it is not the case of the Appellants that non-extension of their contracts suffers from *mala-fide* in law as neither the Contract Policy, 2004 has been challenged nor any statutory instrument or order has been assailed. The nature of challenge put forward by the Appellants at maximum can be termed as *mala-fide* in fact, which this Court in exercise of its

constitutional jurisdiction cannot entertain, as such kind of allegations require strict factual proof.

13. In the instant case the Appellants cannot even invoke the jurisdiction of Civil Court claiming damages in terms of 73 of the Contracts Act as it is not the case of the Appellants that their contracts were either terminated illegally or prematurely, which may give rise to a right in their favour to approach the court of plenary jurisdiction.

14. In terms of law the nature of declaration that the contracts duly executed by them are liable to be extended is itself barred by law. The Appellants' entitlement to a legal character or a legal right has to emanate or stem out of a law and not from a contract. If this Court directs the respondents to extend the contracts of the Appellants after their completion the same would be hit by clear provisions of the law.

15. In any event the contract employee does not have a vested right to seek extension of his contract. Reliance in this regard is placed on **2021 PLC (C.S) 245** titled "*Province of Punjab through Secretary Schools Education Department, Punjab Civil Secretariat, Lahore and 2 others v. Muhammad Amir Hayat and 4 others*" wherein at page 254 a learned Bench of this Court held as under:

"It is settled law by now that contractual employees could not claim extension of the contract as a matter of right rather it was the prerogative of the competent authority either to dispense with

services of such employee or continue with the same by extending the contract. In the case in hand, the contracts of the Respondents expired in year 2017 and no extension was made by the Appellants thereafter meaning thereby the competent authority does not want to extend the contracts of the Respondents as the same had already expired. Reliance is placed on "Mubashar Majeed v. Province of Punjab and 3 others" (2017 PLC (C.S.) Lahore 940). Furthermore, the Respondents, after accepting terms and conditions of their contract employment had submitted their joining report and the Respondents had no right to claim extension in their contract period as a vested right. Reliance is placed on "Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others" (2017 PLC (C.S.) Lahore 488). It is also to be noted that the Respondents had been appointed on contract basis for a specific period of five years which they had completed in 2017 and therefore, no vested right could be claimed by them keeping in view the terms of their contractual engagement. Reliance is placed on titled "Azhar Hayat v. Chairman Karachi Port Trust and others" (2017 PLC (C.S.) Karachi 632)."

16. We, therefore, hold that the extension in contract period is a matter of discretion of the Respondent which cannot be interfered by this Court in the absence of any violation of statutory rules, this Court in exercise of its constitutional jurisdiction cannot direct an unwilling employer to retain the services of its employee.

17. So far as the contention that the Appellants had been discriminated, we are afraid that even this argument is untenable in eyes of law. To establish discrimination it is imperative for the Appellants to

substantiate that they are equally placed with the employees whose contracts were extended. Such an allegation that too bereft of any support or material under the law is termed as bald and evasive. The Respondents have cogently established that only the contracts of those employees were extended whose performance was found to be satisfactory, whereas, the Appellants' performance was poor and upon expiration of their contracts in terms of law they did not deserve extension. In the case of "Asad Ullah Mangi and others vs. Pakistan International Airlines Corporation & others" cited as **2005 SCMR 445** the Hon'ble Supreme has held as under:-

"Discrimination always involves an element of unfairness and biased and it is in that sense that expression as to be understood. The factum of biased could not be substantiated by any convincing evidence. A Court of Law cannot exercise unfettered or unrestricted powers to administer supposed equity not based on justiciable foundation and it must be satisfied before exercising its power that some illegal grant has been inflicted or is about to be inflicted upon the Appellant."

18. In the instant case the plea of discrimination at maximum remains an allegation as it was poor performance of the Appellants which compelled the respondent not to extend their contracts. Lastly, the self-coined assessment of the Appellants that poor performance is a stigma for them is also unfounded as the refusal to extend their contracts does not contain any specific reason. It is just that upon completion of contract period their contracts were not extended.

19. In view of what has been held above, we see no legal infirmity in the impugned Judgment and consequently the Intra Court Appeal filed by the Appellants is **dismissed.**

(Shahid Jamil Khan)
Judge

(Muhammad Raza Qureshi)
Judge

Approved for reporting

Judge

Judge

